

**IN THE COURT OF THE IV ADDITIONAL DISTRICT AND SESSIONS
JUDGE, AND ADDL. M.A.C.T. DHARWAD.**

Present : Sri. A.S.Sadalge,
B.A, LL.B.(Spl),
IV Addl.District & Sessions Judge and
Addl. M.A.C.T., Dharwad.

M.V.C.Nos.43/2019, 44/2019 and 48/2019.

DATED THIS THE 21st DAY OF DECEMBER, 2019.

PETITIONERS IN M.V.C.No.43/2019 :

1. Balakrishna K.P., Age: 34 years, Occ: Private service, R/o.Shashtri Nagar, Plot No.27, 3rd cross, Near Vinayak Nagar, Dharwad-580001.
2. Hanamant K.P. Age: 32 years, Occ: Private service, R/o.Shashtri Nagar, Plot No.27, 3rd cross, Near Vinayak Nagar, Dharwad-580001.
3. Ramesh K.P. Age: 34 years, Occ: Private service, R/o.Shashtri Nagar, Plot No.27, 3rd cross, Near Vinayak Nagar, Dharwad-580001.
4. Smt.Gangavva w/o.Bharamappa Govindapannavar @ Kudapali, Age: 78 years, Occ: Household, R/o.Shashtri Nagar, Plot No.27, 3rd cross, Near Vinayak Nagar, Dharwad-580001.

(By M.R.Basur, Advocate)

PETITIONERS IN M.V.C.No.44/2019 :

1. Balakrishna K.P., Age: 34 years, Occ: Private service, R/o.Shashtri Nagar, Plot No.27, 3rd cross, Near Vinayak Nagar, Dharwad-580001.

2. Hanamant K.P. Age: 32 years, Occ: Private service, R/o.Shashtri Nagar, Plot No.27, 3rd cross, Near Vinayak Nagar, Dharwad-580001.
3. Ramesh K.P. Age: 34 years, Occ: Private service, R/o.Shashtri Nagar, Plot No.27, 3rd cross, Near Vinayak Nagar, Dharwad-580001.
4. Smt.Gangavva w/o.Bharamappa Govindappanavar @ Kudapalli, Age: 78 years, Occ: Household, R/o.Shashtri Nagar, Plot No.27, 3rd cross, Near Vinayak Nagar, Dharwad-580001.

(By M.R.Basur, Advocate)

PETITIONERS IN M.V.C.No.48/2019 :

1. Shamkumar s/o.Sadanand Pachange @ Pachangi, Age: 35 years, Occ: Private Service, R/o.Gurudatta Apartment, Yemmikeri, Dharwad.
2. Vikas s/o.Sadanand Pachange @ Pachangi, Age: 33 years, Occ: Nil, R/o.Gurudatta Apartment, Yemmikeri, Dharwad.

(By M.R.Basur, Advocate)

Versus

Respondent in all cases:

Managing Director, N.W.K.R.T.C. Central Office, Gokul Road, Hubballi.

(By V.B.Dhavaleshwar, Advocate,)

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COMMON JUDGEMENT

The petitioners in all the petitions have filed their respective petitions U/Sec.166 of the Motor Vehicles Act 1988 to award compensation with interest at the rate of 18% p.a. from the date of accident till complete realization.

1) The brief facts of the petitioner's case are as under:

On 3/6/2018 the deceased Parameshwar and his wife deceased Nirmala and their family members deceased Vidya w/o.Sadanand were travelling from Sirsi towards Hubballi in a Car bearing No.KA-25/Z-4902. At about 15.10 hours, near Hudelkoppa road cross, one K.S.R.T.C. bus bearing No.KA-31/F-1273 came from Hubballi side which was proceeded towards Sirsi. The driver of the said bus had driven the same in high speed, rash and negligent manner without observing all the traffic rules and regulations and without blowing horn and dashed to the car bearing No.KA-25/Z-4902. As a result of the said accident, said car turned towards Sirsi and at that time, one Mahindra Bolero vehicle bearing No.KA-25/MB-0966 which was coming from behind the car. So also car touched the said vehicle and in the said accident, Parameshwar, his wife Nirmala and one Vidya

w/o.Sadanand have sustained fatal injuries and Nirmala died on the spot itself and said Parameshwar and Vidya have been brought to K.I.M.S. Hospital Hubballi and they have died in the hospital at the time of treatment. Post mortem has been conducted. The petitioners have spent about Rs.1,20,000/- for transportation of dead body, funeral expenses and other miscellaneous expenses. Accident took place due to rash and negligent driving of the said K.S.R.T.C. bus by its driver. So the police have registered the case and filed the charge sheet against the K.S.R.T.C. bus driver. The deceased Parameshwar was working as an Agricultural Officer in Agriculture Department at Kundagol and he was getting salary of Rs.52,239/- p.m. at that time and he was contributing full amount of salary to the said petitioners. The petitioners are the sons and mother of the deceased and they are the legal heirs. So they are entitled for compensation. They were depending on the earnings of the deceased. The deceased Nirmala was doing tailoring work and she was earning daily atleast Rs.300/- and her monthly income was Rs.18,000/-. She used to contribute her full amount to her family. The petitioners are the sons and mother-in-law of the deceased. They were depending on the earnings of the

deceased. So they are entitled for compensation. The deceased Vidya was doing tailoring work and she was daily earning Rs.300/- and monthly Rs.18,000/- and she was getting monthly pension of Rs.8000/- of her husband and contributing her full entire amount for family expenses. The petitioners are the sons of Vidya and they are the legal heirs. So they are entitled for compensation. Accordingly the petitioners in M.V.C.No.43/2019 have requested to award compensation of Rs.90,00,000/- with interest and the petitioners in M.V.C.No.44/19 have requested to award compensation of Rs.50,00,000/- with interest and the petitioners in M.V.C.No.48/2019 have requested to award compensation of Rs.60,00,000/- with interest. The respondent is liable to pay the compensation amount.

3. The cases are numbered as M.V.C.No.43/2019, 44/2019 and 48/2019 and made over to this court. After receipt of the records, this court has issued notice to the respondent.

4. The respondent appeared through the counsel and filed objections contending that the allegations and assertions made in the petitions are false. The petitions are not maintainable either in law or on facts, the respondent is not proper party to the petitions.

The Divisional Controller N.W.K.R.T.C. Sirsi is necessary and proper party to these petitions. So the petitions are not maintainable. The respondent has not admitted that the petitioners are legal heirs of deceased as contended. The contention of the petitioners that the deceased were working and earning income as stated in the petitions are false. On the date of alleged accident, the driver of the bus was driving in a moderate speed by observing all traffic rules and regulations and he has reached the spot of accident which was a curve. At that time the driver of the car bearing No.KA-25/Z-4902 came from Sirsi side towards Hubballi side in a rash and negligent manner and while over taking the Bolero vehicle bearing No.KA-25/MB-0966 which was proceeding in front of him, came to the extreme right side and dashed to the extreme right side of K.S.R.T.C. bus, turned towards Sirsi side. The driver of the Bolero vehicle which was coming behind the car who was also in a very speed, rash and negligent manner and due to which he could not control his vehicle, dashed to the said car. Due to collision between the car and Bolero vehicle, the deceased have sustained injuries and died. So accident took place not due to rash and negligent driving of the driver of the K.S.R.T.C. bus. Therefore the respondent is

not liable to pay any compensation. The drivers of car and Bolero vehicle are responsible for the said accident. The driver of K.S.R.T.C. bus was also lodged a complaint before the jurisdictional police station about the accident. The complainant is a retired Superintendent of Police who was driving the Bolero vehicle and by misusing his power and colluding with his department, has not received the complaint filed by the K.S.R.T.C. driver and he has managed to file false charge sheet against the driver of the bus. The deceased have died not due to collision with bus but due to collision of Bolero vehicle with car. The owner and insurer of the car as well as Bolero vehicle are necessary parties to these petitions. On that ground also, the petitions are liable to be dismissed for non joinder of necessary parties. The compensation claimed by the petitioners is exorbitant and without any base. Accordingly prayed for dismissal of the petitions.

5. Basing on the above contentions, the following issues have been framed :

M.V.C.No.43/2019 :

1. Whether the petitioners prove that on 3/6/2018 at about 15-10 hours near Hudelkoppa road cross, the driver of the K.S.R.T.C. bus bearing No.KA-31/F-

1273 came with a high speed and in rash and negligent manner without observing the traffic rules and dashed the said K.S.R.T.C. bus to the Car bearing No.KA-25/Z-4902 ?

2. Whether the petitioners prove that the deceased Parameshwar s/o.Bharamappa Kudapali was travelling in the said car and in the said accident, he sustained fatal injuries and died on the way to hospital ?

3. Whether the petitioners prove that they are the legal representatives of deceased Parameshwar ?

4. Whether the petition is bad for non joinder of necessary parties ?

5. Whether the respondent proves that accident has been caused due to negligence of drivers of Car bearing No.KA-25/Z-4902 and driver of Bolero Vehicle bearing No.KA-25/MB-0966 ?

6. Whether the petitioners are entitled for compensation ? If so, for what amount and from whom ?

7. What order or award ?

M.V.C.No.44/2019 :

1. Whether the petitioners prove that on 3/6/2018 at about 15-10 hours near Hudelkoppa road cross,

the driver of the K.S.R.T.C. bus bearing No.KA-31/F-1273 came with a high speed and in rash and negligent manner without observing the traffic rules and dashed the said K.S.R.T.C. bus to the Car bearing No.KA-25/Z-4902 ?

2. Whether the petitioners prove that the deceased Nirmala w/o.Parameshwar Kudapali was travelling in the said car and in the said accident, she sustained fatal injuries and died on the spot ?

3. Whether the petitioners prove that they are the legal representatives of deceased Nirmala ?

4. Whether the petition is bad for non joinder of necessary parties ?

5. Whether the respondent proves that accident has been caused due to negligence of drivers of Car bearing No.KA-25/Z-4902 and driver of Bolero Vehicle bearing No.KA-25/MB-0966 ?

6. Whether the petitioners are entitled for compensation ? If so, for what amount and from whom ?

7. What order or award ?

MVC No.48/2019 :

1. Whether the petitioners prove that on 3/6/2018 at about 15-10 hours near Hudelkoppa

road cross, the driver of the K.S.R.T.C. bus bearing No.KA-31/F-1273 came with a high speed and in rash and negligent manner without observing the traffic rules and dashed the said K.S.R.T.C. bus to the Car bearing No.KA-25/Z-4902 ?

2. Whether the petitioners prove that the deceased Vidya w/o.Sadanand Pachange was travelling in the said car and in the said accident, she sustained fatal injuries and died on the way to hospital ?

3. Whether the petitioners prove that they are the legal representatives of deceased Vidya ?

4. Whether the petition is bad for non joinder of necessary parties ?

5. Whether the respondent proves that accident has been caused due to negligence of drivers of Car bearing No.KA-25/Z-4902 and driver of Bolero Vehicle bearing No.KA-25/MB-0966 ?

6. Whether the petitioners are entitled for compensation ? If so, for what amount and from whom ?

7.What Order ?

6. All these three cases have been clubbed and common evidence has been recorded.

7. The petitioner No.2 in M.V.C.No.43/2019 is examined as P.W.1 and petitioner No.2 in M.V.C.No.44/2019 is examined as P.W.2 and petitioner No.2 in M.V.C.No.48/2019 is examined as P.W.3 and one alleged eye witness is examined as P.W.4. The petitioners have got marked totally 17 documents at Ex.P.1 to P.17 and closed the side.

8. The driver of the K.S.R.T.C. bus is examined as R.W.1 and in his evidence, the respondent has got marked 5 documents at Ex.R.1 to R.5, closed the side.

9. I have heard the arguments on both side and perused the oral and documentary evidence.

10. My findings on the above issues are as under;

M.V.C.No.43/2019 :

Issue No.1 : In the affirmative.

Issue No.2 : In the affirmative.

Issue No.3 : In the affirmative.

Issue No.4 : In the negative.

Issue No.5 : In the negative.

Issue No.6 : The petitioners are entitled for total compensation of Rs.28,11,160/- from the respondent.

Issue No.7 : As per final order.

M.V.C.No.44/2019 :

- Issue No.1 : In the affirmative
- Issue No.2 : In the affirmative
- Issue No.3 : In the affirmative
- Issue No.4 : In the negative.
- Issue No.5 : In the negative.
- Issue No.6 : The petitioners are entitled for total compensation of Rs.4,87,000/- from the respondent.
- Issue No.7 : As per final order.

M.V.C.No.48/2019 :

- Issue No.1 : In the affirmative.
- Issue No.2 : In the affirmative.
- Issue No.3 : In the affirmative.
- Issue No.4 : In the negative.
- Issue No.5 : In the negative.
- Issue No.6 : The petitioners are entitled for total compensation of Rs.4,87,000/- from the respondent.
- Issue No.7 : As per final order, for the following;

REASONS

11. **Issue No.1, 2 and 5 in all the cases :** It is the specific case of the petitioners that on 3/6/2018 all the deceased were travelling in a Car bearing No.KA-25/Z-4902 from Sirsi towards Hubballi. When the said car came near Hudelkopa road cross, at that time one K.S.R.T.C. bus bearing No.KA-31/F-1273 came from Hubballi towards Sirsi in a high speed, rash and negligent manner without observing the traffic rules and regulations and dashed to the said car. Due to that, said car turned and another vehicle Mahindra Bolero bearing No.KA-25/MB-0966 which was came behind the car, car touched the said vehicle and in the said accident, Parashuram, Nirmala and Vidya have sustained fatal injuries and succumbed to the same. The respondent has specifically denied the said contentions and contended that the driver of the bus was driving the same by observing the traffic rules. There was no any negligence on the part of the driver of the K.S.R.T.C. bus and said accident has been caused due to rash and negligent driving of the car as well as Bolero vehicle. So this aspect goes to show that the respondent has admitted the accident.

12. The learned counsel for the petitioners submitted that the evidence of P.W.1 to 3 and eye witness P.W.4 as well as copy of the complaint, F.I.R., charge sheet and other materials clearly show that accident has been caused due to rash and negligent driving of the K.S.R.T.C. bus by its driver and evidence available on record clearly show that the deceased Parashuram, Nirmala and Vidya were travelling in the said car and in that accident, they have sustained fatal injuries and died due to accidental injuries.

13. On the other hand, the learned counsel for the respondent in his written statement contended that the complainant is a retired Superintendent of Police who was driving the Bolero vehicle by misusing his power and in colluding with his department, has managed to file charge sheet against the driver of the said bus. But in fact, there is no any rash and negligence of the said bus by its driver. Accident has been caused due to rash and negligent driving of the car as well as Bolero vehicle. The driver of the K.S.R.T.C. bus is examined as R.W.1 wherein he has clearly deposed as per objection filed by the respondent. The driver has filed private

complaint against the driver of the car and Bolero vehicle. That complaint was referred for investigation and in the newspaper, it is clearly stated that car has hit the bus. The respondent has produced the order sheet concerned to private complaint, copy of the complaint, newspaper, photo etc. Those documents clearly show that accident has been caused due to rash and negligent driving of the car and Bolero vvehicle. Spot sketch also clearly show that accident has been caused in the middle of the road. So it is clear that there is no sole negligence on the part of the driver of the K.S.R.T.C. bus. Accordingly he submitted that the petitioners have failed to prove issue No.1, but respondent has proved issue No.5.

14. I have gone through the evidence of P.W.1 to 3 who are the petitioners in their respective petitions. In their examination-in-chief by way of affidavit, they have reiterated the averments made in the petitions. I have carefully gone through the cross examination of these witnesses but nothing has been elicited to disbelieve their version. No doubt they stated that accident has been caused between three vehicles i.e. bus, Bolero vehicle and car. But no where they have admitted that due to rash and

negligent driving of the car and Bolero vehicle, accident has been caused.

15. The petitioners have chosen to examine the eye witness as P.W.4. In his evidence he has clearly deposed that on 3/6/18 at about 3.10 p.m. after completion of his coolie work, he was proceeded near accident spot. At that time K.S.R.T.C. bus bearing No.KIA-31/F-1273 came from Hubballi side which was proceeded towards Sirsi. The driver of the said bus was driving the same in high speed, rash and negligent manner and dashed to the car bearing No.KA-25/Z-4902 which was coming from the opposite direction and behind the car, one Bolero vehicle was also coming and car turned and it has touched the Bolero vehicle. So accident was caused solely due to negligence of the driver of the K.S.R.T.C. bus. I have gone through the cross examination of these witnesses but nothing has been elicited to disbelieve his version. No doubt in the cross examination, he deposed that in the accident spot, there is a curve, but it does not mean that accident has been caused due to rash and negligent driving of the car and Bolero vehicle.

16. In support of the oral evidence, the petitioners have produced the copy of the F.I.R. marked at Ex.P.1, copy of the complaint marked at Ex.P.2, copy of the spot mahazar marked at Ex.P.3 along with spot sketch and copy of the MVA report at Ex.P.4. I have carefully perused the said documents. No doubt the complainant is a retired SP but itself is not a ground to say that colluding with police department, he has managed to file charge sheet against the driver of the K.S.R.T.C. bus. On the basis of the complaint filed as per Ex.P.2, Banavasi police have registered the case in their station crime No.54/2018 against the driver of the K.S.R.T.C. bus for the offences punishable U/Sec.279, 337, 338 and 304A of I.P.C. I have perused the document marked at Ex.P.6 i.e. copy of the charge sheet. It clearly show that concerned police after completion of investigation, submitted the charge sheet against the driver of the K.S.R.T.C. bus for the offences punishable U/Sec.337, 338 and 304A I.P.C. I have perused the spot sketch. On perusal of the spot sketch also, it clearly show that even though there is sufficient width of the road on the left side, the driver of K.S.R.T.C. bus has not taken his bus to the extreme left side of the said road. That aspect also clearly show that accident has

been caused due to rash and negligent driving of the K.S.R.T.C. bus by its driver.

17. R.W.1 the driver of K.S.R.T.C. bus deposed that he was driving the bus slowly and in a moderate speed by observing all traffic rules and regulations. At that time the driver of the car bearing No. KA-25/Z-4902 came from Sirsi side towards Hubballi in a rash and negligent manner and while over taking Bolero vehicle bearing No.KA-25/MB-0966 which was proceeding in front of him came to extreme right side of K.S.R.T.C. bus and turned towards Sirsi side. He further deposed that he had went to police station to file complaint but police have not received the same. In the cross examination he clearly stated that but he has not made any complaint against the concerned police officer to the higher authorities. No doubt the document marked at Ex.R.1 which is C.C. of the order sheet concerned to private complaint No.202/2018, the driver of the K.S.R.T.C. bus has filed said private complaint and order sheet discloses that concerned Magistrate has referred said complaint for investigation. But it is not at all contention of the respondent that the concerned police after completion of investigation submitted the charge sheet against the driver of

Bolero vehicle and car. Ex.R.2 is copy of the private complaint. Ex.R.3 is newspaper. No doubt in the newspaper, it is written that bus was proceeded from Hubballi towards Udupi. At that time, Swift car came from opposite direction and dashed to the bus and Bolero vehicle has dashed to the car. But that itself is not suffice to conclude that accident has been caused due to rash and negligent driving of the driver of the car and Bolero vehicle. It is natural that the driver of the K.S.R.T.C. bus say that accident has not been caused due to his negligence. The respondent has not examined any independent witness to prove that accident has been caused due to rash and negligent driving of the car and Bolero vehicle. So the evidence of driver of K.S.R.T.C. bus is not suffice to believe the defence taken in the objections.

18. I have carefully perused the complaint which is marked at Ex.P.2 wherein it is stated that one Keshav was driver of the said car and on enquiry he disclosed that the deceased lady is by name Nirmala and Parameshwar and Vidya have sustained severe injuries. P.M. report marked at Ex.P.4 clearly show that Parameshwar was travelling in the said car and due to accident, he has sustained injuries and succumbed to the said

injuries. P.M. report marked at Ex.P.9 and 10 clearly show that Nirmala and Vidya were also travelling in the said vehicle and in the accident they have sustained fatal injuries and died due to accidental injuries. It is not at all contention of the respondent that the deceased were not travelling in the said car. So the evidence available on record clearly show that accident has been caused due to sole negligence of the driving of the K.S.R.T.C. bus by its driver and deceased Parameshwar , his wife Nirmala and vidya were travelling in the said car and in the accident they have sustained fatal injuries and died. The respondent has failed to prove that accident has been caused due to rash and negligent driving of the car and Bolero vehicle. Hence, I answer issue No.1 and 2 in the affirmative and issue No.5 in the negative.

19. **Issue No.3 in M.V.C.No.43/2019:** the petitioner contended that the petitioners 1 to 3 are sons of deceased Parameshwar and petitioner No.4 is mother. P.W.1 in his evidence deposed accordingly. They have produced the varsa certificate marked at Ex.P.8. It clearly show that petitioners 1 to 3 are sons of Parameshwar and petitioner No.4 is mother of

deceased. So they are legal heirs. Hence I answer issue No.3 in the affirmative.

20. **Issue No.3 in M.V.C.No.44/2019:** The petitioner contended that the petitioners 1 to 3 are sons of deceased Nirmala and petitioner No.4 is mother in law of deceased Nirmala. In the evidence P.W.2 has deposed accordingly. Admittedly Nirmala is wife of Parameshwar. The petitioners 1 to 3 are sons of Nirmala and petitioner No.4 is mother in law of Nirmala. Hence I hold that the petitioners have proved this issue. Accordingly I answer it in the affirmative.

21. **Issue No.3 in M.V.C.No.48/2019:** The petitioners contended that they are sons of deceased Vidya. P.W.3 in his evidence deposed accordingly and they have produced the varsa certificate marked at Ex.P.17. On perusal of the same, it clearly show that the petitioners are sons of deceased Vidya. Hence I answer this issue in the affirmative.

22. **Issue No.4 in all cases:** The respondent contended that the owner and insurer of the car as well as Bolero vehicle are necessary parties. So the petitions are bad for non joinder of necessary parties. I have already discussed in issues 1 and 5

and hold that accident has been caused due to sole negligence of the driver of the K.S.R.T.C. bus. Under such circumstances, the petitions are not bad for non-joinder of necessary parties. Hence I answer issue No.4 in all the cases in the negative.

23. **Issue No.6 in M.V.C.No.43/2019:** The petitioners contended that the deceased was working as agricultural officer and he was drawing salary of Rs.52,239/- and he used to contribute the salary for maintenance of his family. As petitioners are the legal heirs of deceased, they were depending. P.W.1 in his evidence deposed accordingly. But it is admitted fact that the petitioners 1 to 3 are the major sons of deceased Parameshwar and they all are working. The learned counsel for the petitioners has clearly admitted that the petitioners 1 to 3 were not the dependents. But he contended that the petitioner No.4 being the mother of deceased she was entirely depending on the earnings of the deceased Parameshwar and he has filed memo of calculation and stated that it is just and necessary to deduct half income in the salary of the deceased and remaining income is required to be considered. The petitioners have produced the salary certificate of deceased Parameshwar which is marked at Ex.P.7. I have

perused the same i.e. salary slip concerned to deceased for the month of April 2018. his gross salary is shown as Rs.52,239/-. The learned counsel for the petitioner in the memo of calculation has deducted Rs.1000/- towards income tax and Rs.200/- towards profession tax and stated that total net salary is Rs.51,039/- and he himself admitted that in that salary, half is required to be deducted towards personal expenses of the deceased. Admittedly the petitioner No.4 is mother of the deceased. So she was dependent. In a net salary of Rs.51039/-, $\frac{1}{2}$ is deducted towards personal expenses of the deceased and net income per month contributed to the family is taken as Rs.25,520/- and it is multiplied by 12, it comes to Rs.3,06,240/-. On perusal of the salary slip, it is clear that the date of birth of the deceased is 1-4-1959, accident took place in the year 2018. so it is clear that at the time of accident, the deceased was aged about 59 years. For the age group between 56 to 60, multiplier 9 is applicable and yearly income of Rs.3,06,240/- is multiplied by 9, it comes to Rs.27,56,160/-. As deceased was aged about 59 years, there should be no addition of income. Hence I hold that amount is considered as loss of dependency. The petitioners 1 to 3 are the sons of

deceased and petitioner No.4 is mother. So it is just and proper to award some amount towards loss of love and affection. Taking into consideration these aspects, I hold that the petitioners are entitled for compensation as follows:

1. Towards loss of dependency	:	Rs.27,56,160/-
2. Towards loss of estate	:	Rs. 15,000/-
3. Towards loss of love and affection etc	:	Rs. 25,000/-
4. Towards funeral expenses and miscellaneous expenses etc	:	Rs. 15,000/-
Total	:	Rs.28,11,160/-

24. The petitioners 1 to 3 are working in private sectors and petitioner No.4 is aged woman who is mother of the deceased. So taking into consideration these facts, it is just and necessary to award the compensation at Rs.5,00,000/- each to the petitioners 1 to 3 and the petitioner No.4 is entitled for Rs.13,11,160/-. Hence I answer this issue accordingly.

25. **Issue No.6 in M.V.C.No.44/2019:** The petitioners contended that the deceased Nirmala was doing tailoring work and she was earning Rs.18,000/- p.m. and she used to contribute the same for maintenance of the family. P.W.2 in his evidence deposed accordingly. But except the oral evidence,

there are no other corroborative evidence to show that the deceased was doing tailoring work. The deceased aged about 56 years. Accident has been taken place in 2018. So taking into consideration of these facts, it is just and necessary to consider the notional income of the deceased at Rs.8000/- p.m. The learned counsel for the petitioner has filed a memo of calculation wherein he has clearly stated that $\frac{1}{2}$ is required to be deducted towards personal expenses of the deceased. Admittedly the petitioners 1 to 3 are the sons of deceased and they are working in private sectors. So it is clear that they were not depending on the earnings of the deceased. The petitioner No.4 is mother-in-law of the deceased. It appears that to some extent, she was depending on the deceased Nirmala. So it is just and necessary to deduct 50% of her income towards her personal expenses and remaining 50% of the amount is considered as contributed to the family. In the monthly income of Rs.8000/-, 50% has been deducted. So net income contributed to the family is considered as Rs.4000/-. This amount has been multiplied by multiplier 12, it comes to Rs.48,000/-. The deceased was aged 56 years old. So for that

age group, 9 is applicable. Rs.48000/- is multiplied by 9, it comes to Rs.4,32,000/-. As age of the deceased is 56 years, question of addition of income does not arise. The petitioners 1 to 3 are the sons of deceased. So they have lost love and affection of their mother. The petitioner No.4 is mother-in-law of the deceased. She has lost love and affection of her daughter in law. So it is just and necessary to award some amount towards loss of love and affections. So taking into consideration all these aspects, following compensation is awarded as follows:

1. Towards loss of dependency	Rs.4,32,000/-
2. Towards loss of estate	Rs. 15,000/-
3. Towards loss of love and affection	Rs. 25,000/-
4. Towards funeral expenses etc.	Rs. 15,000/-

Total:	Rs. 4,87,000/-

Out of that amount, the petitioner No.1 to 3 are entitled for compensation of Rs.1,00,000/- each and petitioner no.4 is entitled for remaining amount of Rs.1,87,000/-.

26. Issue No.6 in M.V.C.No.48/2019. The petitioners contended that the deceased Vidya was doing tailoring work and she was

earning Rs.18,000/- p.m. and she used to contribute the same for maintenance of the family. P.W.3 in his evidence deposed accordingly. But except the oral evidence, there are no other corroborative evidence to show that the deceased was doing tailoring work. The deceased aged about 58 years. Accident has been taken place in 2018. So taking into consideration of these facts, it is just and necessary to consider the notional income of the deceased at Rs.8000/- p.m. The learned counsel for the petitioner has filed a memo of calculation wherein he has clearly stated that $\frac{1}{2}$ is required to be deducted towards personal expenses of the deceased. Admittedly the petitioners 1 and 2 are the sons of deceased and petitioner No.1 is working in private sector. The learned counsel for the petitioners submitted that petitioner No.2 is a handicapped and he was completely depending on the deceased. So it is just and necessary to deduct 50% of her income towards her personal expenses and remaining 50% of the amount is considered as contributed to the family. In the monthly income of Rs.8000/-, 50% has been deducted. So net income contributed to the family is considered as Rs.4000/-. This amount has been multiplied by multiplier 12, it comes to

Rs.48,000/-. The deceased was aged 58 years old. So for that age group, multiplier 9 is applicable. Rs.48000/- is multiplied by 9, it comes to Rs.4,32,000/-. As age of the deceased is 58 years, question of addition of income does not arise. The petitioners 1 and 2 are the sons of deceased. So they have lost love and affection of their mother. So taking into consideration all these aspects, following compensation is awarded as follows:

1. Towards loss of dependency	Rs.4,32,000/-
2. Towards loss of estate	Rs. 15,000/-
3. Towards loss of love and affection	Rs. 25,000/-
4. Towards funeral expenses etc.	Rs. 15,000/-

Total:	Rs. 4,87,000/-

Out of that amount, the petitioner No.1 is entitled for compensation of Rs.2,00,000/- and petitioner no.2 is entitled for remaining amount of Rs.2,87,000/-. So all the petitioners are entitled for that much amount with future interest at 6% p.a. from the date of petition till complete realisation from the respondent.

27. **Issue No.7 in all the cases :** In view of my findings on the above issues, I proceed to pass the following :

ORDER

All the petitions filed by the petitioners U/Sec.166 of M.V.Act are allowed in part.

The petitioners in M.V.C.No.43/2019 are entitled for total compensation of Rs.28,11,160/- with future interest at the rate of 6% p.a. from the date of petition till complete realization from the respondent.

Out of the above said compensation, the petitioners 1 to 3 are entitled for Rs.5,00,000/- each and petitioner No.4 is entitled for compensation of Rs.13,11,160/-.

Out of the compensation awarded to their respective shares, the petitioners are entitled for release of 50% of the compensation with accrued interest on it and remaining 50% of the compensation awarded to each petitioners with accrued interest, shall be deposited in any nationalized bank for a period of 5 years.

The petitioners in M.V.C.No.44/2019 are entitled for total compensation of Rs.4,87,000/- with future interest at the rate of 6% p.a. from the date of petition till complete realization from the respondent.

Out of the above said compensation, the petitioners 1 to 3 are entitled for Rs.1,00,000/- each and petitioner No.4 is entitled for compensation of Rs.1,87,000/-.

Out of the compensation awarded to their respective shares, the petitioners are entitled for release of 50% of the compensation with accrued interest on it and remaining 50% of the compensation awarded to each petitioners with accrued interest, shall be deposited in any nationalized bank for a period of 5 years.

The petitioners in M.V.C.No.48/2019 are entitled for total compensation of Rs.4,87,000/- with future interest at the rate of 6% p.a. from the date of petition till complete realization from the respondent.

Out of the above said compensation, the petitioner No.1 is entitled for Rs.2,00,000/- and petitioner No.2 is entitled for compensation of Rs.2,87,000/-.

Out of the compensation awarded to their respective shares, the petitioners are entitled for release of 50% of the compensation with accrued interest on it and remaining 50% of the compensation awarded to each petitioners with accrued

interest, shall be deposited in any nationalized bank for a period of 5 years.

The respondent is liable to pay the compensation.

Advocate fee is fixed at Rs.1000/- in each case.

Draw awards accordingly.

Keep the original judgment in M.V.C.No.43/2019 and copy of the same in M.V.C.No.44/2019 and 48/2019.

(Dictated to the stenographer, computerized, corrected, and signed by me and then pronounced in the open court on this **21st day of December, 2019**).

(A.S.Sadalge)
IV Addl.District & Sessions Judge
& Addl. MACT, Dharwad.

A N N E X U R E

List of witnesses examined for the Petitioners : -

P.W.1	Hanamant K.P. (M.V.C.No.43/2019)
P.W.2	Hanamant K.P. (M.V.C.No.44/2019)
P.W.3	Vikas Sadanand Pachangi (M.V.C.No.48/2019)
P.W.4	Bangarya Basavaraj Hasler.

List of documents exhibited for the petitioner.: -

Ex.P.1	Copy of F.I.R.
Ex.P.2	Copy off complaint
Ex.P.3	Copy of spot panchanama with sketch
Ex.P.4	MVI report
Ex.P.5	P.M. report of Parameshwar
Ex.P.6	Charge sheet

Ex.P.7	Salary certificate of Parameshwar
Ex.P.8	Varsa certificate
Ex.P.9	P.M. report (M.V.C.No.44/12019)
Ex.P.10	P.M. report (M.V.C.No.48/12019)
Ex.P.11	Medical certificate
Ex.P.12	Medical certificate
Ex.P.13	X-rays
Ex.P.14	Scan reports
Ex.P.15	MRI cervical report
Ex.P.16	X-ray
Ex.P.17	Varsa certificate

List of witnesses examined for the respondents :-

R.W.1	Anand Deepa Hulaswar
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List of documents marked for the respondents :-

Ex.R.1	Order sheet in P.C.No.202/18.
Ex.R.2	Complaint in PCR
Ex.R.3	Newspaper
Ex.R.4	Six photos
Ex.R.5	One C.D.

(A.S.Sadalge)
IV Addl.District & Sessions Judge
& Addl. MACT, Dharwad.